

Amar Singh vs Bimla Devi And Ors on 18 July, 2024

Neutral Citation No. (2024:HHC:5401) IN THE HIGH COURT OF HIMACHAL PRADESH,
SHIMLA Cr. Revision No. 353 of 2022 Reserved on: 02.07.2024 .

Date of Decision: 18.07.2024

Amar Singh

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Versus

Bimla Devi and Ors.

...Respond

Coram

Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?1 No

For the Petitioner

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Ms. Heena Chauhan, Advocate.

For the Respondents

:

Mr. Raj Kumar Negi, Advocate.

Rakesh Kainthla, Judge

The petitioner (respondent before learned Trial Court) has filed the present petition against the order dated 04.06.2022 passed by learned Additional Principal Judge, Family Court Kinnaur at Rampur Bushehar, District Shimla, (learned Trial Court) vide which the petition filed by the present respondents (petitioners before learned Trial Court) was allowed and maintenance @ 1,500/- per month was awarded to each of the petitioners from respondent from the date of the filing of the Whether reporters of Local Papers may be allowed to see the judgment? Yes.

petition. (The parties shall hereinafter be referred to as in the same manner as they were arrayed before the learned Trial Court for .

convenience).

2. Briefly stated, the facts giving rise to the present petition are that the petitioner filed a petition under Section 125 of Cr.P.C. for granting monthly maintenance @ 3,000/- each. It was asserted that marriage between the parties was solemnized in November 1995 as per Hindu Rites and Customs. Petitioners No. 2 and 3 were born to the parties. Petitioner No.2 is aged 19 years and is physically handicapped. Petitioner No.3 is studying in Class XI.

They are under the care and custody of petitioner No.1. The parties resided together for 15 years. The behaviour of the respondent changed after the birth of petitioner No.3. He started beating petitioner No.1 under the influence of liquor. He humiliated and harassed petitioner No.1 repeatedly. The petitioner was compelled to leave her matrimonial home in June 2010 and take shelter in her parents' house. The respondent solemnized a second marriage during the subsistence of his marriage with the petitioner.

Petitioner No.2 is physically handicapped. He remains under treatment from PGI, Chandigarh. Petitioner No.3 is a student and requires money for his education, books and uniform. The petitioners do not have any source of income. The respondent is the owner of 20 bighas of apple orchard and earns 5,00,000/-

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per annum from it. He is also working as a Carpenter and has sufficient income to maintain the petitioners. Hence, the petition for seeking maintenance @ 3,000/- per month each.

3. The petition is opposed by filing a reply denying the contents of the petition; however, the relationship between the parties was not disputed. It was asserted that the petitioner asked the respondent to reside separately from his family within six months of their marriage. The respondent started residing with petitioner No.1 at village Tootu (Delath). The children were born to the parties at Tootu. The petitioner renounced Hinduism and accepted Islam. She married one Khair Din. The marriage agreement and affidavit were registered in Jammu and Kashmir on 18.07.2009. The petitioner sent the respondent to his native village to look after his property in June 2009 and she left the society of the respondent taking advantage of his absence. The respondent was informed about the fact that the petitioner was missing on 08.07.2009. The respondent lodged the report with the police on 09.07.2009. He filed an application under Sections 97 and 98 of Cr.P.C. before learned SDM, Rampur Bushehar, who issued the search warrants. The petitioner was recovered from the house of Khair Din at Kishtwar and was produced before learned SDM. She .

opted to go to her parental home and left the respondent. She did not join the company of the respondent. The petitioner is living in adultery and is not entitled to any maintenance. It was specifically denied that the respondent had solemnized a second marriage. It was asserted that the petitioner is the only heir of her mother who owns 15 bighas of land situated at Chak Totu (Delath). She has grown apple, plum and almond trees over the land. She earns more than 5,00,000/- per annum from the orchard. The respondent is unable to work as a Carpenter. He only possesses two bighas of land, which is Banjar and does not have any orchard.

Therefore, it was prayed that the present petition be dismissed.

4. A rejoinder denying the contents of the reply and affirming those of the petition was filed.

5. The parties were called upon to produce the evidence and the petitioner examined herself (AW1). The respondent examined himself (RW1).

6. Learned Trial Court held that the relationship between the parties was not disputed. The plea of the respondent that petitioner No.1 was living in adultery was not proved. The petitioners had no source of income; hence, the petition was .

allowed and the maintenance @ 1,500/- per month each was awarded to the petitioners.

7. Being aggrieved from the order passed by the learned Trial Court, the respondent-husband has filed the present petition asserting that the learned Trial Court erred in granting maintenance to the petitioners. It was duly proved on record that petitioner No.1 was living in adultery and had refused to reside with the respondent-husband without any reasonable cause. The respondent tendered the statement of the petitioner recorded by the police, wherein she had categorically stated that she was brought from the house of Khair Din at Kishatwar. The statement was marked as Mark 'X'. The missing report of petitioner No.1 was also tendered as mark 'Y' and the affidavit of marriage was tendered as mark 'Z'. These documents were not considered by the learned Trial Court. Learned Trial Court erred in holding that the term 'living in adultery' would constitute the continuous act of adultery, which is not the correct position of law. The children had become major and this fact was ignored by the learned Trial Court;

hence, it was prayed that the present petition be allowed and the order passed by the learned Trial Court be set aside.

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8. I have heard Ms Heena Chauhan, learned counsel for the respondent/husband and Ms Raj Kumar Negi, learned counsel for the petitioners.

9. Ms Heena Chauhan, learned counsel for the respondent/husband submitted that the learned Trial Court erred in allowing the petition and awarding the maintenance to the petitioners. It was duly proved that petitioner No.1 was residing in adultery and she had married one Khair Din. She was recovered from Kishatwar, which fact was sufficient to prove the conduct of petitioner No.1. Petitioners No.2 and 3 have become major and no maintenance could have been awarded to them, hence, she prayed that the present petition be allowed and the petition filed by the petitioners be dismissed.

10. Mr. Raj Kumar Negi, learned counsel for the petitioners supported the order and submitted that there was no proof of the adultery and learned Trial Court had rightly awarded the maintenance in favour of the petitioners. Therefore, he prayed that the present petition be dismissed.

11. I have given considerable thought to the rival submissions at the bar and have gone through the records .

Carefully.

12. The respondent tendered a copy of the statement of the petitioner Mark 'X', her missing report Mark 'Y' and her affidavit Mark 'Z'. These documents are merely photocopies. No foundation was laid for tendering the secondary evidence. Therefore, the photocopies could not have been admitted in evidence and learned Trial Court had rightly refused to consider these documents.

13. Petitioner-Bimla Devi denied in her cross-

examination that she went with Khair Din in July 2009 to Kishatwar. She denied any acquaintance with Khair Din. She also denied that a complaint was lodged by the respondent before the police and the police recovered her from Jammu and Kashmir. She denied that she had renounced the Hindu religion and adopted Islam. She denied that search warrants were issued and she appeared before the Court where she made a statement. She denied her signatures on the statement or the fact that she had accepted that she had left the home voluntarily.

14. It is apparent from the cross-examination of the petitioner-wife that she has not admitted her marriage with Khair .

Din or that she was residing with him at Kishatwar. Hence, the statement of petitioner No.1 does not prove the version of the respondent-husband that she had solemnized the marriage with Khair Din or that she was residing with him at Kishatwar.

15. No other evidence was led to establish this fact; hence, the submission that petitioner No.1 was residing with Khair Din and she was living in adultery is not acceptable.

16. The petitioner No.1 stated that her elder son is aged 20 years and her younger son is aged 16 years. She stated that the elder son suffers from epilepsy and is being taken to PGI, Chandigarh for treatment. She has filed a copy of the out-patient ticket of PGI (mark 'A'), which shows that Manoj was being treated at PGIMER Chandigarh in the year 2008. The present petition was filed in the year 2016 and there is no proof of the fact that petitioner No.2 Manoj was suffering from epilepsy at the time of the filing of the petition. No medical officer was examined and no medical record was filed to establish this fact.

17. Section 125 of Cr.P.C. provides that a person having sufficient means is liable to maintain his legitimate or illegitimate .

child, who has attained majority where such child is unable to maintain herself because of physical or mental abnormality or injury. Therefore, the petitioners were required to prove that the child was unable to maintain himself because of the physical or mental abnormality. There is no proof of the fact that petitioner No.2 was unable to maintain himself due to epilepsy. Hence, the necessary

condition laid down in Section 125(c) of Cr.P.C. was not satisfied.

18. A birth certificate of Manoj Kumar (Exhibit 'RX') shows that he was born on 12.12.1997, therefore, he was aged more than 18 years on 06.01.2016, the date of the filing of the petition.

This is also as per the statement of petitioner No.1 that petitioner no.2 was aged 20 years on 27.01.2017. Since petitioner No.2 had attained the majority before filing of the petition; therefore, he was not entitled to maintenance in the absence of proof of disability and incapacity to earn a living. Since such an incapacity was not proved, therefore, learned Trial Court erred in awarding maintenance to him.

19. The date of birth of the petitioner No.3 shows that he was born on 08.04.1999 and he attained the majority during the .

pendency of the petition. Hence, he was only entitled to maintenance during the period of his minority and learned Trial Court erred in not confining the maintenance during the minority of petitioner No.3.

20. The petitioner-wife stated that the respondent-

husband is earning 600/- per day by working as a Carpenter. He owns 500 trees and earns 8,00,000/- per annum. The respondent stated in his cross-examination that he has one and a half bigha of land, which was Banjar. He claimed that he was ill but did not file any proof of his illness. Thus, he is to be treated as an able-bodied person. The State Government had fixed the minimum wages of an unskilled worker as 200/- per day w.e.f.

July 1st, 2016; thus, the respondent could have earned 200/- per day or 6000/- per month out of which he can easily provide maintenance of 1,500/- to petitioner No.1. Thus, no interference is required with the amount of maintenance awarded in favour of petitioner No.1.

21. Hence, the order passed by the learned Trial Court is partly sustainable qua the petitioner No.1 and is liable to be .

modified regarding petitioner No.2 and 3. Since petitioner No.2 had attained the majority before filing of the petition, therefore, the maintenance awarded in his favour is liable to be set aside.

Petitioner No.3 became major during the pendency of the petition and is only entitled to maintenance till he attained a majority.

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23. to No other point was urged.

Therefore, the present petition is partly allowed and the maintenance of 1,500/- awarded in favour of petitioner No.1 is upheld. The maintenance of 1,500/- awarded in favour of petitioner No.2 is ordered to be set aside and maintenance in favour of petitioner No.3 is ordered to be restricted during the period of his minority. The present petition stands disposed of, so also the pending miscellaneous applications, if any.

(Rakesh Kainthla) Judge 18th July, 2024 (Saurav Pathania)